

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000069

L.Mendez

Recorded On: 3/9/2026 11:10:12 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 60.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000069
Receipt Number	1961362
Recorded Date/Time:	3/9/2026 11:10:12 AM
Station:	CCH01-CCK100



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF FORECLOSURE SALE

March 4th, 2026

Deed of Trust ("Deed of Trust"):

Dated: February 24th, 2023

Grantor: 101 North Mesa Limited Partnership

Trustee: Robert T. Pearson

Lender: Robert Malooly

Recorded in: Doc# 20230021898 of the Real Property Records of El Paso County, Texas, Filed & Recorded on March 29th, 2023, in the Official Records of El Paso County, Texas

Legal Descriptions:

A portion of Block 5 (sometimes known as Block 51/2), MILLS MAP ADDITION, an Addition in the City of El Paso, El Paso County, Texas according to the City Block Map in the Office of the County Clerk of El Paso County, Texas, and being more particularly described by metes and bounds in Exhibit "A" attached hereto and made a part hereof for all purposes.

Secures: Promissory Note ("Note") in the original principal amount of \$635,000.00, executed by Caples Land Company LLC ("Borrower") and payable to the order of Lender

Foreclosure Sale:

Date: Tuesday April 7th, 2026

Time: The sale of the Property will be held between the hours of 10:00 A.M. and 4:00 P.M. local time; the earliest time at which the Foreclosure Sale will begin is 10:00 A.M.

Place: El Paso County Coliseum
4100 E. Paisano Drive, El Paso, Texas 79905

Terms of Sale: The Foreclosure Sale will be conducted as a public auction and the Property will be sold to the highest bidder for cash, except that Robert Malooly bid may be by credit against the indebtedness secured by the lien of the Deed of Trust.

Default has occurred in the payment of the Note and in the performance of the obligations of the Deed of Trust. Because of that default, Robert Malooly, the owner and holder of the Note, has requested Trustee to sell the Property.

The Deed of Trust encumbers real property. Formal notice is hereby given of Robert Malooly's election to proceed against and sell the real property described in the Deed of Trust in

accordance with Robert Malooly's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

Therefore, notice is given that on and at the Date, Time, and Place for the Foreclosure Sale described above, Trustee will sell the Property in accordance with the Terms of Sale described above, the Deed of Trust, and applicable Texas law.

If Robert Malooly passes the Foreclosure Sale, notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

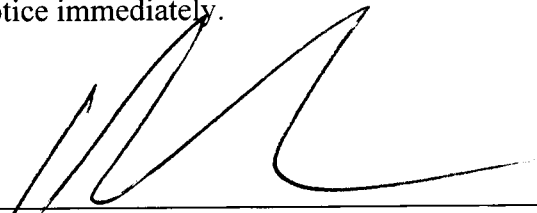
The Foreclosure Sale will be made expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the Foreclosure Sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the Foreclosure Sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by Robert Malooly. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS," without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to section 51.0075(a) of the Texas Property Code, Trustee reserves the right to set further reasonable conditions for conducting the Foreclosure Sale. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Trustee.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

Dated the 4th day of March 2026.



ROBERT T. PEARSON, Trustee